

□ Your Safety Comes First

Some of what you shared suggests you may be dealing with a situation that could put your safety at risk. You are not alone, and help is available right now — you do not need a lawyer or any money to reach it.

If you are in immediate danger, call 911.

You can reach trained, confidential help any time:

- **Call or text 988** — the Suicide & Crisis Lifeline (open 24/7)
- **Text the Crisis Text Line:** text HOME to **741741** (open 24/7, for any kind of crisis)

You get to decide what feels safe for you. The steps above are here whenever you are ready.

□ Deadlines & Time-Sensitive Items

Read this first. Missing a legal deadline can end a case. The dates below are estimates generated automatically — **always confirm the exact date with the court or a lawyer.**

△ on March 9 I gave HR the doctor's note and asked, real polite, can I get moved to the scan station or use the lift assist for the heavy stuff.

- **Estimated deadline:** 2027-01-03
- **Basis:** 42 U.S.C. § 2000e-5(e)(1), applied to ADA claims via 42 U.S.C. § 12117(a) (in a deferral state such as Minnesota, an EEOC charge must be filed within 300 days of the discriminatory act; each discrete act — a denial of accommodation, a discharge — has its own clock).
- **Triggering event:** served on 2026-03-09
- **Jurisdiction:** MN
- To sue for disability discrimination under federal law (the ADA), you usually must first file a charge with the EEOC within 300 days of the discriminatory act in Minnesota (42 U.S.C. § 2000e-5(e)(1); § 12117(a)). Each separate act — being denied an accommodation, being fired — starts its own 300-day clock, so the EARLIEST act controls for that claim. Note: since Oct. 1, 2025 the state (MDHR) and the EEOC no longer automatically cross-file, so protect BOTH by filing with each. Estimated — confirm the exact date with the court or a lawyer.

△ on April 6 I received an email saying no lifting up to 50 pounds is an 'essential function.'

- **Estimated deadline:** 2027-01-31
- **Basis:** 42 U.S.C. § 2000e-5(e)(1), applied to ADA claims via 42 U.S.C. § 12117(a) (in a deferral state such as Minnesota, an EEOC charge must be filed within 300 days of the discriminatory act; each discrete act — a denial of accommodation, a discharge — has its own clock).
- **Triggering event:** served on 2026-04-06

- **Jurisdiction:** MN
- To sue for disability discrimination under federal law (the ADA), you usually must first file a charge with the EEOC within 300 days of the discriminatory act in Minnesota (42 U.S.C. § 2000e-5(e)(1); § 12117(a)). Each separate act — being denied an accommodation, being fired — starts its own 300-day clock, so the EARLIEST act controls for that claim. Note: since Oct. 1, 2025 the state (MDHR) and the EEOC no longer automatically cross-file, so protect BOTH by filing with each. Estimated — confirm the exact date with the court or a lawyer.

⚠ **The termination letter came on May 22.**

- **Estimated deadline:** 2027-03-18
- **Basis:** 42 U.S.C. § 2000e-5(e)(1), applied to ADA claims via 42 U.S.C. § 12117(a) (in a deferral state such as Minnesota, an EEOC charge must be filed within 300 days of the discriminatory act; each discrete act — a denial of accommodation, a discharge — has its own clock).
- **Triggering event:** served on 2026-05-22
- **Jurisdiction:** MN
- To sue for disability discrimination under federal law (the ADA), you usually must first file a charge with the EEOC within 300 days of the discriminatory act in Minnesota (42 U.S.C. § 2000e-5(e)(1); § 12117(a)). Each separate act — being denied an accommodation, being fired — starts its own 300-day clock, so the EARLIEST act controls for that claim. Note: since Oct. 1, 2025 the state (MDHR) and the EEOC no longer automatically cross-file, so protect BOTH by filing with each. Estimated — confirm the exact date with the court or a lawyer.

**⚠ last winter my disc problems got real bad,
herniated disc L4-L5**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** incident on 2026-01-01
- **Jurisdiction:** MN
- Estimated — confirm the exact date with the court or a lawyer.

**⚠ on June 30 HR emailed me a 'severance agreement,
'4 weeks pay, \$3,520, but I have to sign by JULY 21**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** served on 2026-06-30
- **Jurisdiction:** MN
- Estimated — confirm the exact date with the court or a lawyer.

**⚠ Employee has until 5:00 PM on July 21, 2026 to
sign and return this Agreement.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
 - **Triggering event:** deadline on 2026-07-21
 - **Jurisdiction:** MN
 - Estimated — confirm the exact date with the court or a lawyer.
-

Executive Summary

This intake surfaced 14 potential legal issues across Federal, Minnesota. The most strongly supported issues are Disability Discrimination - Failure to Accommodate, Failure to Notify of FMLA Rights, and Retaliation - Employment Decision. A time-sensitive deadline was computed: on March 9 I gave HR the doctor's note and asked, real polite, can I get moved to the scan station or use the lift assist for the heavy stuff. by 2027-01-03 [42 U.S.C. § 2000e-5(e)(1), applied to ADA claims via 42 U.S.C. § 12117(a) (in a deferral state such as Minnesota, an EEOC charge must be filed within 300 days of the discriminatory act; each discrete act — a denial of accommodation, a discharge — has its own clock).]. Safety concerns were detected in this narrative; see the safety resources below. Analysis completeness is 75%; 5 follow-up questions below would strengthen the assessment.

Completeness Score: 75%

Untitled Intake

Generated: 2026-07-11 21:49 UTC

Matter ID: 237

Run ID: 67

Completeness: 75%

Federal

| Family and Medical Leave Act (FMLA) Violation

Claim Type: discovered | **Confidence:** 80%

FOLIO IRI: <https://folio.openlegalstandard.org/RCmAarh6Wj8m6lLe6lJJBmj>

ISSUE

Gideon was placed on leave potentially neglecting his rights under FMLA, as he did not receive the necessary information or documentation regarding his entitlements and rights while on leave.

RULE

No authorities identified for this claim.

APPLICATION

- **Eligible Employee:** Unsupported - The employee must be eligible for FMLA leave.
- **Serious Health Condition:** Unsupported - The employee must have a serious health condition that requires leave.
- **Notice Requirement:** Supported (85% confidence) - The employer must provide required FMLA notices and documents to the employee.
 - Fact: Nobody ever said a word to me about FMLA when they put me on leave. (85% match)
 - Fact: Nobody ever gave me any paperwork when they put me on leave. (85% match)

- **Leave Entitlement:** Supported (81% confidence) - The employee is entitled to take leave under FMLA.
 - Fact: Temporary modified duty assignments are reserved for employees recovering from work-related injuries covered by workers' compensation. (81% match)

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 80): Element 'Eligible Employee' is not yet supported by any facts
 - Element: Eligible Employee
- **Unsupported Element** (Priority 80): Element 'Serious Health Condition' is not yet supported by any facts
 - Element: Serious Health Condition
- **Procedural Requirement** (Priority 50): What is the timeline of your employment and leave, and did you file an FMLA claim within the required timeframe?

CONCLUSION

2 of 4 elements supported (42% confidence)

| Civil Claims

Claim Type: discovered | **Confidence:** 40%

Related to: Family and Medical Leave Act (FMLA) Violation

FOLIO IRI: <https://folio.openlegalstandard.org/R8jYAnNATrfoBxAtIKpf72X>

ISSUE

Discovered via FOLIO ontology traversal from Family and Medical Leave Act (FMLA) Violation (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Civil Claims' has not been explored with fact mappings

CONCLUSION

No elements defined

| Employment Claims

Claim Type: discovered | **Confidence:** 40%

Related to: Family and Medical Leave Act (FMLA) Violation

FOLIO IRI: <https://folio.openlegalstandard.org/R Cty0MaQzrLC9KnzjM7nMER>

ISSUE

Discovered via FOLIO ontology traversal from Family and Medical Leave Act (FMLA) Violation (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Employment Claims' has not been explored with fact mappings

CONCLUSION

No elements defined

| Litigation Claims

Claim Type: discovered | **Confidence:** 40%

Related to: Family and Medical Leave Act (FMLA) Violation

FOLIO IRI: <https://folio.openlegalstandard.org/R9q7GJc1zsYT0P4Xdp6l9Oz>

ISSUE

Discovered via FOLIO ontology traversal from Family and Medical Leave Act (FMLA) Violation (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Litigation Claims' has not been explored with fact mappings

CONCLUSION

No elements defined

Statutory and Regulatory Claims

Claim Type: discovered | **Confidence:** 40%

Related to: Family and Medical Leave Act (FMLA) Violation

FOLIO IRI: <https://folio.openlegalstandard.org/R9LVBKjvGRuzwgtlhuLST36>

ISSUE

Discovered via FOLIO ontology traversal from Family and Medical Leave Act (FMLA) Violation (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Statutory and Regulatory Claims' has not been explored with fact mappings

CONCLUSION

No elements defined

Wage and Hour Claims

Claim Type: discovered | **Confidence:** 40%

Related to: Family and Medical Leave Act (FMLA) Violation

FOLIO IRI: <https://folio.openlegalstandard.org/R9UYGSnWQz2MvNsWUofGb6J>

ISSUE

Discovered via FOLIO ontology traversal from Family and Medical Leave Act (FMLA) Violation (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Wage and Hour Claims' has not been explored with fact mappings

CONCLUSION

No elements defined

General

| Failure to Notify of FMLA Rights

Claim Type: discovered | **Confidence:** 90%

FOLIO IRI: <https://folio.openlegalstandard.org/RmCCZU8GS7O8920pkDipw7>

ISSUE

Under the FMLA, employers are required to notify employees of their rights. Failure to provide this information may support a claim of FMLA violation.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Failure to Notify of FMLA Rights' has not been explored with fact mappings

CONCLUSION

No elements defined

| Age Discrimination

Claim Type: discovered | **Confidence:** 85%

FOLIO IRI: <https://folio.openlegalstandard.org/RDSTWxMJK0mcdxB1oQtK7jC>

ISSUE

The comments suggest a bias against older employees and may contribute to a claim of discrimination based on age, particularly if younger employees are treated more favorably.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Age Discrimination' has not been explored with fact mappings

CONCLUSION

No elements defined

| Retaliation for Medical Condition

Claim Type: discovered | **Confidence:** 80%

ISSUE

If the termination was influenced by his medical condition and requests for accommodations, it may constitute retaliatory action prohibited under various employment statutes.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Retaliation for Medical Condition' has not been explored with fact mappings

CONCLUSION

No elements defined

Retaliatory Discharge

Claim Type: discovered | **Confidence:** 80%

FOLIO IRI: <https://folio.openlegalstandard.org/R8J1Ftzgc2Gsee7MqAQEMM>

ISSUE

Given the timing of the termination in relation to Gideon's requests for accommodation and the supervisor's comments about needing 'guys who can hustle', there is a strong suggestion of retaliatory discharge.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Retaliatory Discharge' has not been explored with fact mappings

CONCLUSION

No elements defined

Hostile Work Environment

Claim Type: discovered | **Confidence:** 75%

FOLIO IRI: <https://folio.openlegalstandard.org/RDkj6GTtRxusz974SJZt7xP>

ISSUE

Continued derogatory comments and treatment may contribute to a work environment that is hostile, which can violate workplace harassment laws.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Hostile Work Environment' has not been explored with fact mappings

CONCLUSION

No elements defined

| Retaliatory Discrimination

Claim Type: discovered | **Confidence:** 75%

FOLIO IRI: <https://folio.openlegalstandard.org/RCW4ROCsdWndMwqVoSxvEE2>

ISSUE

The pattern of negative treatment following Gideon's requests for accommodation may contribute to a claim of retaliatory discrimination under existing laws.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Retaliatory Discrimination' has not been explored with fact mappings

CONCLUSION

No elements defined

| Constructive Discharge

Claim Type: discovered | **Confidence:** 70%

FOLIO IRI: <https://folio.openlegalstandard.org/RsHKmukY8RoJdJO1gsTCxN>

ISSUE

HR's failure to respond to Gideon's accommodations and the implications of his being placed on unpaid leave might suggest constructive discharge based on Gideon's inability to continue working under such conditions.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Constructive Discharge' has not been explored with fact mappings

CONCLUSION

No elements defined

More possible issues (show more)

- **Potential Violation of Minnesota Human Rights Act:** 70% confidence
- **Inadequate Severance Agreement Consideration:** 40% confidence

Minnesota

Disability Discrimination - Failure to Accommodate

Claim Type: discovered | **Confidence:** 90%

FOLIO IRI: <https://folio.openlegalstandard.org/R8f088bmlfkWDbXdJj9nQD9>

ISSUE

Gideon requested a reasonable accommodation due to his herniated disc, but was denied reassignment to a lighter duty scan station despite being qualified for the position. Additionally, the company did not effectively communicate options available under the FMLA.

RULE

No authorities identified for this claim.

APPLICATION

- **Disability:** Supported (85% confidence) - The employee has a recognized disability under the law.
 - Fact: Gideon has a herniated disc L4-L5. (85% match)

- **Request for Accommodation:** Supported (85% confidence) - The employee made a request for a reasonable accommodation due to the disability.
 - Fact: In February, Gideon's doctor put him on a restriction of no lifting over 35 pounds. (85% match)
 - Fact: I asked HR if I can get moved to the scan station or use the lift assist for the heavy stuff. (85% match)
- **Denial of Accommodation:** Supported (85% confidence) - The employer denied the requested accommodation.
 - Fact: Tri-State Fulfillment Group is unable to grant the requested accommodation. (85% match)
 - Fact: Reassignment to a scanning station is not available in Gideon's case. (85% match)
- **Essential Functions:** Supported (85% confidence) - The requested accommodation would allow the employee to perform the essential functions of their job.
 - Fact: The Picker I position requires the ability to lift up to 50 lbs on a regular basis. (85% match)
 - Fact: Gideon's leave was contingent on a return to full duty with no restrictions by May 22, 2026. (85% match)
- **Employer's Knowledge:** Supported (85% confidence) - The employer had knowledge of the employee's disability and accommodation request.
 - Fact: In February, Gideon's doctor put him on a restriction of no lifting over 35 pounds. (85% match)

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): What is the filing deadline for a disability discrimination claim in your state, and have you missed it?

CONCLUSION

5 of 5 elements supported (85% confidence)

| Area of Law

Claim Type: discovered | **Confidence:** 40%

Related to: Disability Discrimination - Failure to Accommodate

ISSUE

Discovered via FOLIO ontology traversal from Disability Discrimination - Failure to Accommodate (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Area of Law' has not been explored with fact mappings

CONCLUSION

No elements defined

| Labor and Employment Law

Claim Type: discovered | **Confidence:** 40%

Related to: Disability Discrimination - Failure to Accommodate

FOLIO IRI: <https://folio.openlegalstandard.org/>

RCzvtNXIrDJF8xkmOoc6JKH

ISSUE

Discovered via FOLIO ontology traversal from Disability Discrimination - Failure to Accommodate (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Labor and Employment Law' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): Have you determined the relevant jurisdiction for filing your employment law claims?

CONCLUSION

No elements defined

Retaliation - Employment Decision

Claim Type: discovered | **Confidence:** 85%

FOLIO IRI: <https://folio.openlegalstandard.org/R7irtksGAUxreU1oxQJBon8>

ISSUE

Gideon may have experienced retaliation after requesting accommodation due to his back condition, as evidenced by the comments made by his supervisor and the subsequent events leading to his unpaid leave and termination.

RULE

No authorities identified for this claim.

APPLICATION

- **Protected Activity:** Supported (85% confidence) - The employee engaged in a protected activity (requesting accommodation for a disability).
 - Fact: On March 9, I gave HR the doctor's note. (85% match)
- **Adverse Employment Action:** Supported (85% confidence) - The employer took an adverse employment action (placing the employee on unpaid leave, terminating employment).
 - Fact: They put me on unpaid leave on April 6. (85% match)
 - Fact: After handing in the note, Derek stopped giving me the good routes. (85% match)
 - Fact: Gideon's employment with Tri-State Fulfillment Group, Inc. ends effective May 22, 2026. (85% match)
- **Causal Connection:** Supported (85% confidence) - There is a causal connection between the protected activity and the adverse employment action.
 - Fact: Derek said, 'We need guys who can hustle, not broken down guys.' (85% match)

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): Have you kept documentation of the events occurring after your request for accommodation that may support your retaliation claim?

CONCLUSION

3 of 3 elements supported (85% confidence)

Retaliatory Constructive Discharge

Claim Type: discovered | **Confidence:** 40%

Related to: Retaliation - Employment Decision

FOLIO IRI: <https://folio.openlegalstandard.org/RDc0eHNQ19MPBBKXzPjzhX8>

ISSUE

Discovered via FOLIO ontology traversal from Retaliation - Employment Decision (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Retaliatory Constructive Discharge' has not been explored with fact mappings

CONCLUSION

No elements defined

Retaliatory Termination

Claim Type: discovered | **Confidence:** 40%

Related to: Retaliation - Employment Decision

FOLIO IRI: <https://folio.openlegalstandard.org/RCmf15zJ11534c952RISI9T>

ISSUE

Discovered via FOLIO ontology traversal from Retaliation - Employment Decision (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Retaliatory Termination' has not been explored with fact mappings

CONCLUSION

No elements defined

| Unlawful Termination

Claim Type: discovered | **Confidence:** 75%

FOLIO IRI: <https://folio.openlegalstandard.org/RCcidDCaGrSequSQ0hnokdb>

ISSUE

Gideon's employment termination occurred after he reported a medical condition and requested accommodation, which raises concerns about whether the termination was lawful.

RULE

No authorities identified for this claim.

APPLICATION

- **Employment Relationship:** Supported (85% confidence) - The employee had an existing employment relationship with the employer.
 - Fact: Gideon has been on unpaid personal leave of absence since April 6, 2026. (85% match)
 - Fact: Gideon's employment with Tri-State Fulfillment Group, Inc. ends effective May 22, 2026. (85% match)
- **Termination:** Supported (85% confidence) - The employer terminated the employee's employment.
 - Fact: Gideon's employment with Tri-State Fulfillment Group, Inc. ends effective May 22, 2026. (85% match)
 - Fact: The termination letter came on May 22. (85% match)
- **Illegal Motive:** Supported (85% confidence) - The termination was based on an illegal motive (disability discrimination or retaliation for requesting accommodation).
 - Fact: If I couldn't come back full duty by late May, I was done. (85% match)

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): Have you filed a complaint with the appropriate agency regarding your termination within the statutory timeframe?

CONCLUSION

3 of 3 elements supported (85% confidence)

More possible issues (show more)

- **Whistleblower Retaliation:** 40% confidence (related to Retaliation - Employment Decision)

Action Items

Documents to Gather

- [] **[URGENT]** Element 'Eligible Employee' is not yet supported by any facts
 - **Claim:** Family and Medical Leave Act (FMLA) Violation
 - **Element:** Eligible Employee
- [] **[URGENT]** Element 'Serious Health Condition' is not yet supported by any facts
 - **Claim:** Family and Medical Leave Act (FMLA) Violation
 - **Element:** Serious Health Condition

Follow-up Steps

- [] **[URGENT]** Confirm the deadline for: on March 9 I gave HR the doctor's note and asked, real polite, can I get moved to the scan station or use the lift assist for the heavy stuff. (estimated 2027-01-03; 42 U.S.C. § 2000e-5(e)(1), applied to ADA claims via 42 U.S.C. § 12117(a) (in a deferral state such as Minnesota, an EEOC charge must be filed within 300 days of the discriminatory act; each discrete act — a denial of accommodation, a discharge — has its own clock).). To sue for disability discrimination under federal law (the ADA), you usually must first file a charge with the EEOC within 300 days of the discriminatory act in Minnesota (42 U.S.C. § 2000e-5(e)(1); § 12117(a)). Each separate act — being denied an accommodation, being fired — starts its own 300-day clock, so the EARLIEST act controls for that claim. Note: since Oct. 1, 2025 the state (MDHR) and the EEOC no longer automatically cross-file, so protect BOTH by filing with each. Estimated — confirm the exact date with the court or a lawyer.
 - **Deadline:** 2027-01-03

- [] **[URGENT]** Confirm the deadline for: on April 6 I received an email saying no lifting up to 50 pounds is an 'essential function.' (estimated 2027-01-31; 42 U.S.C. § 2000e-5(e)(1), applied to ADA claims via 42 U.S.C. § 12117(a) (in a deferral state such as Minnesota, an EEOC charge must be filed within 300 days of the discriminatory act; each discrete act — a denial of accommodation, a discharge — has its own clock)). To sue for disability discrimination under federal law (the ADA), you usually must first file a charge with the EEOC within 300 days of the discriminatory act in Minnesota (42 U.S.C. § 2000e-5(e)(1); § 12117(a)). Each separate act — being denied an accommodation, being fired — starts its own 300-day clock, so the EARLIEST act controls for that claim. Note: since Oct. 1, 2025 the state (MDHR) and the EEOC no longer automatically cross-file, so protect BOTH by filing with each. Estimated — confirm the exact date with the court or a lawyer.

- **Deadline:** 2027-01-31

- [] **[URGENT]** Confirm the deadline for: The termination letter came on May 22. (estimated 2027-03-18; 42 U.S.C. § 2000e-5(e)(1), applied to ADA claims via 42 U.S.C. § 12117(a) (in a deferral state such as Minnesota, an EEOC charge must be filed within 300 days of the discriminatory act; each discrete act — a denial of accommodation, a discharge — has its own clock)). To sue for disability discrimination under federal law (the ADA), you usually must first file a charge with the EEOC within 300 days of the discriminatory act in Minnesota (42 U.S.C. § 2000e-5(e)(1); § 12117(a)). Each separate act — being denied an accommodation, being fired — starts its own 300-day clock, so the EARLIEST act controls for that claim. Note: since Oct. 1, 2025 the state (MDHR) and the EEOC no longer automatically cross-file, so protect BOTH by filing with each. Estimated — confirm the exact date with the court or a lawyer.

- **Deadline:** 2027-03-18

- [] **[URGENT]** Separate from being fired, the law required your employer to seriously discuss a 'reasonable accommodation' with you (like the scan station or lift-assist) and not just say no (42 U.S.C. § 12112(b)(5); Minn. Stat. § 363A.08). Skipping that back-and-forth (the 'interactive process') can be its own violation, with its own deadline. Did anyone ever actually discuss other job options with you before denying it? [Authority: 42 U.S.C. § 12112(b)(5) (ADA failure to accommodate / interactive process); Minn. Stat. § 363A.08 (MHRA disability accommodation)]
- [] **[URGENT]** You asked your boss about overtime and were fired the same day. Firing or punishing a worker for asking about unpaid wages or overtime is illegal retaliation in Minnesota (Minn. Stat. § 181.03, subd. 6; § 177.32). The timing matters a lot here. Do you have the texts or messages showing you asked about overtime right before you were fired? [Authority: Minn. Stat. § 181.03, subd. 6 (retaliation for asserting wage rights); Minn. Stat. § 177.32 (MFLSA anti-retaliation)]
- [] **[URGENT]** The severance agreement asks you to release ALL claims — including the discrimination and accommodation claims — for the payment. Do NOT sign it without legal advice first, and note the sign-by date is a CONTRACT deadline set by the employer, not a legal filing deadline. If you do sign, Minnesota law gives you 15 days afterward to cancel the release of your state human-rights claims (Minn. Stat. § 363A.31). Would you like this reviewed before the sign-by date? [Authority: Minn. Stat. § 363A.31 (15-day rescission right after signing a release of MHRA claims); a severance release generally waives ADA/MHRA/FMLA claims]
- [] **[URGENT]** You said you worked 50+ hour weeks but were paid straight time. In Minnesota you are generally owed time-and-a-half for hours over 48 in a week (Minn. Stat. § 177.25), and federal law may require it over 40 (29 U.S.C. § 207). Unpaid overtime can be a big part of what you are owed. Do you have a record of your weekly hours? [Authority: Minn. Stat. § 177.25]

(MFLSA overtime: time-and-a-half over 48 hrs/week); 29 U.S.C. § 207 (FLSA over 40 hrs/week if covered)]

- [] **[URGENT]** You were put on unpaid medical leave but say no one mentioned FMLA or gave you any FMLA paperwork. For an eligible employee at a large employer, failing to offer and designate FMLA leave can be unlawful 'interference' (29 U.S.C. § 2615). Eligibility depends on hours worked and employer size. About how many hours did you work in the year before the leave, and how big is the site? [Authority: 29 U.S.C. § 2615; 29 C.F.R. § 825.300 (FMLA interference — failure to designate/notify FMLA leave for an eligible employee)]
- [] **[IMPORTANT]** Potential claim 'Labor and Employment Law' has not been explored with fact mappings
 - **Claim:** Labor and Employment Law
- [] **[IMPORTANT]** Potential claim 'Area of Law' has not been explored with fact mappings
 - **Claim:** Area of Law
- [] **[IMPORTANT]** Potential claim 'Retaliatory Discharge' has not been explored with fact mappings
 - **Claim:** Retaliatory Discharge
- [] **[IMPORTANT]** Potential claim 'Retaliatory Constructive Discharge' has not been explored with fact mappings
 - **Claim:** Retaliatory Constructive Discharge
- [] **[IMPORTANT]** Potential claim 'Whistleblower Retaliation' has not been explored with fact mappings
 - **Claim:** Whistleblower Retaliation
- [] **[IMPORTANT]** Potential claim 'Retaliatory Discrimination' has not been explored with fact mappings
 - **Claim:** Retaliatory Discrimination

- [] **[IMPORTANT]** Potential claim 'Retaliatory Termination' has not been explored with fact mappings
 - **Claim:** Retaliatory Termination
- [] **[IMPORTANT]** Potential claim 'Statutory and Regulatory Claims' has not been explored with fact mappings
 - **Claim:** Statutory and Regulatory Claims
- [] **[IMPORTANT]** Potential claim 'Civil Claims' has not been explored with fact mappings
 - **Claim:** Civil Claims
- [] **[IMPORTANT]** Potential claim 'Litigation Claims' has not been explored with fact mappings
 - **Claim:** Litigation Claims
- [] **[IMPORTANT]** Potential claim 'Wage and Hour Claims' has not been explored with fact mappings
 - **Claim:** Wage and Hour Claims
- [] **[IMPORTANT]** Potential claim 'Employment Claims' has not been explored with fact mappings
 - **Claim:** Employment Claims
- [] **[IMPORTANT]** Potential claim 'Failure to Notify of FMLA Rights' has not been explored with fact mappings
 - **Claim:** Failure to Notify of FMLA Rights
- [] **[IMPORTANT]** Potential claim 'Age Discrimination' has not been explored with fact mappings
 - **Claim:** Age Discrimination
- [] **[IMPORTANT]** Potential claim 'Hostile Work Environment' has not been explored with fact mappings
 - **Claim:** Hostile Work Environment

- [] **[IMPORTANT]** Potential claim 'Retaliation for Medical Condition' has not been explored with fact mappings
 - **Claim:** Retaliation for Medical Condition
- [] **[IMPORTANT]** Potential claim 'Potential Violation of Minnesota Human Rights Act' has not been explored with fact mappings
 - **Claim:** Potential Violation of Minnesota Human Rights Act
- [] **[IMPORTANT]** Potential claim 'Inadequate Severance Agreement Consideration' has not been explored with fact mappings
 - **Claim:** Inadequate Severance Agreement Consideration
- [] **[IMPORTANT]** Potential claim 'Constructive Discharge' has not been explored with fact mappings
 - **Claim:** Constructive Discharge
- [] **[IMPORTANT]** What is the filing deadline for a disability discrimination claim in your state, and have you missed it?
 - **Claim:** Disability Discrimination - Failure to Accommodate
- [] **[IMPORTANT]** Have you kept documentation of the events occurring after your request for accommodation that may support your retaliation claim?
 - **Claim:** Retaliation - Employment Decision
- [] **[IMPORTANT]** What is the timeline of your employment and leave, and did you file an FMLA claim within the required timeframe?
 - **Claim:** Family and Medical Leave Act (FMLA) Violation
- [] **[IMPORTANT]** Have you filed a complaint with the appropriate agency regarding your termination within the statutory timeframe?
 - **Claim:** Unlawful Termination

- [] **[IMPORTANT]** Have you determined the relevant jurisdiction for filing your employment law claims?
 - **Claim:** Labor and Employment Law
-

Gap Report Appendix

Overall Completeness: 75%

[===== - - - -] 75%

| Age Discrimination

- **Unexplored Claim** (Priority 50): Potential claim 'Age Discrimination' has not been explored with fact mappings
 - See Action Item #24

| Area of Law

- **Unexplored Claim** (Priority 50): Potential claim 'Area of Law' has not been explored with fact mappings
 - See Action Item #12

| Civil Claims

- **Unexplored Claim** (Priority 50): Potential claim 'Civil Claims' has not been explored with fact mappings
 - See Action Item #19

| Constructive Discharge

- **Unexplored Claim** (Priority 50): Potential claim 'Constructive Discharge' has not been explored with fact mappings
 - See Action Item #29

Disability Discrimination - Failure to Accommodate

- **Procedural Requirement** (Priority 50): What is the filing deadline for a disability discrimination claim in your state, and have you missed it?
 - See Action Item #30

Employment Claims

- **Unexplored Claim** (Priority 50): Potential claim 'Employment Claims' has not been explored with fact mappings
 - See Action Item #22

Failure to Notify of FMLA Rights

- **Unexplored Claim** (Priority 50): Potential claim 'Failure to Notify of FMLA Rights' has not been explored with fact mappings
 - See Action Item #23

Family and Medical Leave Act (FMLA) Violation

- **Unsupported Element** (Priority 80): Element 'Eligible Employee' is not yet supported by any facts
 - Element: Eligible Employee
 - See Action Item #1
- **Unsupported Element** (Priority 80): Element 'Serious Health Condition' is not yet supported by any facts
 - Element: Serious Health Condition
 - See Action Item #2
- **Procedural Requirement** (Priority 50): What is the timeline of your employment and leave, and did you file an FMLA claim within the required timeframe?
 - See Action Item #32

Hostile Work Environment

- **Unexplored Claim** (Priority 50): Potential claim 'Hostile Work Environment' has not been explored with fact mappings
 - See Action Item #25

Inadequate Severance Agreement Consideration

- **Unexplored Claim** (Priority 50): Potential claim 'Inadequate Severance Agreement Consideration' has not been explored with fact mappings
 - See Action Item #28

Labor and Employment Law

- **Unexplored Claim** (Priority 50): Potential claim 'Labor and Employment Law' has not been explored with fact mappings
 - See Action Item #11
- **Procedural Requirement** (Priority 50): Have you determined the relevant jurisdiction for filing your employment law claims?
 - See Action Item #34

Litigation Claims

- **Unexplored Claim** (Priority 50): Potential claim 'Litigation Claims' has not been explored with fact mappings
 - See Action Item #20

Potential Violation of Minnesota Human Rights Act

- **Unexplored Claim** (Priority 50): Potential claim 'Potential Violation of Minnesota Human Rights Act' has not been explored with fact mappings
 - See Action Item #27

Retaliation - Employment Decision

- **Procedural Requirement** (Priority 50): Have you kept documentation of the events occurring after your request for accommodation that may support your retaliation claim?
 - See Action Item #31

Retaliation for Medical Condition

- **Unexplored Claim** (Priority 50): Potential claim 'Retaliation for Medical Condition' has not been explored with fact mappings
 - See Action Item #26

Retaliatory Constructive Discharge

- **Unexplored Claim** (Priority 50): Potential claim 'Retaliatory Constructive Discharge' has not been explored with fact mappings
 - See Action Item #14

Retaliatory Discharge

- **Unexplored Claim** (Priority 50): Potential claim 'Retaliatory Discharge' has not been explored with fact mappings
 - See Action Item #13

Retaliatory Discrimination

- **Unexplored Claim** (Priority 50): Potential claim 'Retaliatory Discrimination' has not been explored with fact mappings
 - See Action Item #16

Retaliatory Termination

- **Unexplored Claim** (Priority 50): Potential claim 'Retaliatory Termination' has not been explored with fact mappings
 - See Action Item #17

Statutory and Regulatory Claims

- **Unexplored Claim** (Priority 50): Potential claim 'Statutory and Regulatory Claims' has not been explored with fact mappings
 - See Action Item #18

Uncategorized

- **Procedural Requirement** (Priority 86): You said you worked 50+ hour weeks but were paid straight time. In Minnesota you are generally owed time-and-a-half for hours over 48 in a week (Minn. Stat. § 177.25), and federal law may require it over 40 (29 U.S.C. § 207). Unpaid overtime can be a big part of what you are owed. Do you have a record of your weekly hours? [Authority: Minn. Stat. § 177.25 (MFLSA overtime: time-and-a-half over 48 hrs/week); 29 U.S.C. § 207 (FLSA over 40 hrs/week if covered)]
 - See Action Item #9
- **Procedural Requirement** (Priority 88): You asked your boss about overtime and were fired the same day. Firing or punishing a worker for asking about unpaid wages or overtime is illegal retaliation in Minnesota (Minn. Stat. § 181.03, subd. 6; § 177.32). The timing matters a lot here. Do you have the texts or messages showing you asked about overtime right before you were fired? [Authority: Minn. Stat. § 181.03, subd. 6 (retaliation for asserting wage rights); Minn. Stat. § 177.32 (MFLSA anti-retaliation)]
 - See Action Item #7
- **Procedural Requirement** (Priority 90): Separate from being fired, the law required your employer to seriously discuss a 'reasonable accommodation' with you (like the scan station or lift-assist) and not just say no (42 U.S.C. § 12112(b)(5); Minn. Stat. § 363A.08). Skipping that back-and-forth (the 'interactive process') can be its own violation, with its own deadline. Did anyone ever actually discuss other job options with you before denying it? [Authority: 42 U.S.C. § 12112(b)(5) (ADA failure to accommodate /

interactive process); Minn. Stat. § 363A.08 (MHRA disability accommodation)]

- See Action Item #6

- **Procedural Requirement** (Priority 88): The severance agreement asks you to release ALL claims — including the discrimination and accommodation claims — for the payment. Do NOT sign it without legal advice first, and note the sign-by date is a CONTRACT deadline set by the employer, not a legal filing deadline. If you do sign, Minnesota law gives you 15 days afterward to cancel the release of your state human-rights claims (Minn. Stat. § 363A.31). Would you like this reviewed before the sign-by date? [Authority: Minn. Stat. § 363A.31 (15-day rescission right after signing a release of MHRA claims); a severance release generally waives ADA/MHRA/FMLA claims]

- See Action Item #8

- **Procedural Requirement** (Priority 84): You were put on unpaid medical leave but say no one mentioned FMLA or gave you any FMLA paperwork. For an eligible employee at a large employer, failing to offer and designate FMLA leave can be unlawful 'interference' (29 U.S.C. § 2615). Eligibility depends on hours worked and employer size. About how many hours did you work in the year before the leave, and how big is the site? [Authority: 29 U.S.C. § 2615; 29 C.F.R. § 825.300 (FMLA interference — failure to designate/notify FMLA leave for an eligible employee)]

- See Action Item #10

Unlawful Termination

- **Procedural Requirement** (Priority 50): Have you filed a complaint with the appropriate agency regarding your termination within the statutory timeframe?

- See Action Item #33

Wage and Hour Claims

- **Unexplored Claim** (Priority 50): Potential claim 'Wage and Hour Claims' has not been explored with fact mappings
 - See Action Item #21

Whistleblower Retaliation

- **Unexplored Claim** (Priority 50): Potential claim 'Whistleblower Retaliation' has not been explored with fact mappings
 - See Action Item #15

Open Questions

1. Did anyone from your workplace talk to you about other ways they could help you do your job, like different tools or changes?
2. Do you have any text messages or emails showing when you asked about overtime, especially if it was right before you were let go?
3. Would you like someone to review the severance agreement before you sign it, to help you understand what claims you might be giving up?
4. How many hours did you typically work each week, and do you keep track of your time in any way?
5. How many hours did you work in the year before you took medical leave, and how many employees worked at your site?